

1.

| CASE #      | CASE NAME          | HEARING NAME                |
|-------------|--------------------|-----------------------------|
| CVRI2502451 | HERNANDEZ VS VOGEL | DEMURRER ON CROSS-COMPLAINT |

**Tentative Ruling:**

*Demurrer on 6th Cause of Action*

The only cause of action at issue is the 6th cause of action in the Cross-Complaint for breach of contract. First Student contends this cause of action fails due to Labor Code § 3864. Labor Code § 3864 provides:

If an action as provided in this chapter prosecuted by the employee, the employer, or both jointly against the third person results in judgment against such third person, or settlement by such third person, the employer shall have no liability to reimburse or hold such third person harmless on such judgment or settlement in absence of a written agreement to do so executed prior to the injury.

(Labor Code, § 3864.)

The Complaint alleges First Student is Hernandez' employer. The parties appear to agree the incident occurred at a place First Students was doing business. The 6th cause of action is based on a provision in a lease agreement between Fernandes and First Students regarding alterations to the property at issue. (Cross-Complaint, ¶ 36.) Based on the allegations in the 6th cause of action, the lease agreement prohibited First Students from making any alterations to the property without Fernandes' permission. (Id.) It is alleged First Students breached this agreement by making alterations to the property without permission. (Id. at ¶ 38.) Fernandes asserts Labor Code § 3864 does not apply to this cause of action because it is not for indemnity and is based on a separate right under an agreement.

Labor Code § 3864 is not limited specifically to indemnity claims. It applies to other causes of action where the aim is to impose liability against an employer for the liability that it is exempted from under Labor Code § 3864. (*Alameda Tank Co. v. Starkist Foods, Inc.* (1980) 103 Cal.App.3d 428, 433. The Court in *Alameda Tank Co.* found the statute applied to causes of action for breach of contract, breach of expressed and implied warranties, fraud, negligent misrepresentation, and equitable estoppel, where the attempt was to seek to impose the same liability that an indemnity claim could. (Id. at p. 433.) The *Alameda Tank Co.* court provided:

The statute, above quoted, does not speak in terms of "indemnity"; its language is to "hold harmless." The contention here made was raised and rejected in *S.F. Examiner Division v. Sweat* (1967) 248 Cal.App.2d 493 [56 Cal.Rptr. 711.] We agree. The statutory right of the employer, in situations such as are herein involved, to be free from liability beyond that imposed by

the worker's compensation laws cannot be evaded by the ingenuity of counsel in presenting his claim for reimbursement under any variety of theories or nomenclature.

(*Id.* at p. 433.)

While Fernandes frames the 6th cause of action as a separate breach of contract claim, it does not appear to be. This cause of action includes allegations that the unauthorized changes resulted in the remnant of a sign to be left in the ground, which is alleged to be the cause of Hernandez' accident. (Cross-Complaint, ¶¶ 38-39; Complaint, ¶ 8.). In this cause of action, Fernandes seeks to recover damages – attorney's fees, costs, and potential settlement proceeds, and expenses from the underlying action. (Cross-Complaint, ¶ 41.) These are the types of damages sought on an indemnity claim. Based on these allegations, Labor Code § 3864 is seemingly applicable to this cause of action.

**Accordingly, the Court sustains the demurrer as to the 6th cause of action with ten (10) days leave to amend from the date of service of the notice of ruling or service of the signed order, whichever is first.**

**Moving party is ordered to submit a proposed order consistent with this ruling by no later than July 2, 2026, 5:00 p.m.**

**2.**

| CASE #      | CASE NAME                                             | HEARING NAME                                                     |
|-------------|-------------------------------------------------------|------------------------------------------------------------------|
| CVRI2506427 | RESNICK VS<br>RIVERSIDE<br>HEALTHCARE SYSTEM,<br>L.P. | MOTION FOR RECONSIDERATION<br>OF MOTION TO COMPEL<br>ARBITRATION |

**Tentative Ruling:**

The hearing on this motion is continued to July 16, 2026, at 8:30 a.m. No further briefing is permitted.

**3.**

| CASE #      | CASE NAME      | HEARING NAME                    |
|-------------|----------------|---------------------------------|
| CVRI2507246 | SAAD VS MELHEM | DEMURRER ON CROSS-<br>COMPLAINT |

**Tentative Ruling:**

The demurrer is unopposed.

*1st Cause of Action: Defamation – Libel and Slander*